

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II and
PATRICK J KARCHER

Index No:

VERIFIED COMPLAINT

Plaintiffs, Diane C. DeSousa and Thomas E. DeSousa, complaining of the
defendants, Richard A. Calvagno II and Patrick J, Karcher allege as follows:

THE PARTIES

1. Plaintiffs, Diane C. DeSousa and Thomas E. DeSousa, (“Plaintiffs”) are individuals and residents of the State of New York, County of Suffolk. Both Plaintiffs are senior citizens in their 70’s.
2. At all times relevant herein, Plaintiffs were and are the fee owners and residents of a parcel of property together with a home and all structures and items thereon a/k/a 329 Grand Central Avenue, Amityville, NY 11701 (Suffolk County Tax Map ID 0101-014.00-01.00-019.000).
3. Upon information and belief, Defendants, Richard A. Calvagno II (“Calvagno”) and Patrick J. Karcher (“Karcher”) are individuals and residents of the State of New York, County of Suffolk.

4. Upon information and belief, at all times relevant herein, Plaintiffs were and are the fee owners and residents of a parcel of property, together with the home, all structures and items thereon, known as 320 Grand Central Avenue, Amityville, NY 11701 (Suffolk County Tax Map ID 0101-014.00-02.00-025.000).

5. The homes/real estate parcels of the parties are across the street on Grand Central Avenue in Amityville, NY.

6. Both parcels are located on a point of land on Long Island's south shore. Grand Central Avenue runs down the center of the point and terminates approximately 600 feet south of these locations. As a result, both parcels have street frontage as well as having frontage and dockage on the Great South Bay.

7. The neighborhood is residential, comprised mainly of single-family homes along quiet tree lined, one lane streets.

RELEVANT FACTS

a. Defendant's Car

8. Upon information and belief Defendant Calvagno is the owner and/or operator of Dodge SRT Hellcat motor vehicle, bearing NY license plates "JHT-6413".

9. Upon information and belief Defendant's Dodge automobile has a modified exhaust system, which either fails to sufficiently muffle the automobiles sound when the engine is running or intentionally amplifies that noise and makes it excessive. In either case the Defendant's Dodge automobile is extremely loud when running and becomes increasing louder with increased engine RPM's or speed.

10. Defendant Calvagno's Dodge automobile is equipped with a remote starting device.

11. Upon information and belief, on many mornings between 6:30 and 7 am, Defendant would start and idle his Dodge automobile in the driveway and/or in the street on front of his home for 5, 10, 15 minutes or longer.

12. Upon information and belief, Defendant's operation of his Dodge automobile violates both NY State and Suffolk County Noise Codes and creates an unnecessary, unreasonable interference and intrusion upon the public in general, and upon his neighbors in particular.

13. Further exacerbating his actions when leaving the driveway, proceeding on the public street, the Defendant would speed away driving recklessly and loudly down the public street.

14. While idling, and driving the excessive noise level emitted by the Defendant's vehicle has been measured (from approximately 60 feet) and most times in excess of 75db.

15. For example, I noted and documented said actions on November 27, 2020 (75.2db); November 27, 2020 (74.1); December 3, 2020 (73.5); December 4, 2020 (79.2); December 4, 2020 (77.4); December 15, 2020 (75.0); December 15, 2020 (75.0) and January 5, 2021 (79.9).

16. Defendant's actions create excessive noise and vibration which interfere with the use and enjoyment of our home.

17. Defendant's actions create excessive noise and vibration which roust or deprive Plaintiffs from sleep.

18. Defendant's actions create excessive noise and vibration which the very anticipation of that noise and vibration interfere with our sleep and prevents us from getting sound sleep, in that we wake often during the night anticipating the noise and vibration. sleep.

19. Weather permitting, we are now unable to open our windows to enjoy fresh outdoor air. Because we are forced to keep our windows closed to try and limit the excessive noise and vibration, we are forced to run our air-condition which has increased our electric bills. Unfortunately, even with the windows closed, we can still hear the noise and feel the vibration.

20. Defendant's actions create excessive noise and vibration which are upsetting to both Plaintiffs, causing stomach upset, nausea and manifesting itself in other physical ways as well.

21. While Defendant's action is most disturbing in the morning, he does not limit his activities to mornings alone. He will idle, race and drive his car recklessly at any time of day. Plaintiffs have stop taking walks because of the danger posed by Defendant's reckless driving.

22. Defendants action create excessive noise, vibration and road danger which does decrease and diminish the value and worth of Plaintiffs' home in addition to creating stress which has manifested itself in sleeplessness and other stress related ailments.

b. Defendants renting boat slips.

23. The Defendants' home is situated in a residential low density zoned area.

24. Defendants have a boat dock behind their home, and upon information and belief, during the 2020 boating season the Defendants rent boat slips to others.

25. Renting boat slips to the general public is carrying on a commercial enterprise in a residential zone, and as such, creates excessive noise, congestion, street traffic and parking issues.

26. Upon information and belief, carrying on a commercial enterprise in a residential zone is a violation of local and county zoning codes.

27. Defendants actions create excessive noise, vibration and congestion which decreases and diminished the value and worth of Plaintiffs' home.

c. Defendants renting back and side yards as a catering hall.

28. In addition to having a boat dock, Defendants have a substantial back and side yard area.

29. Upon information and belief, the defendants have rented out, and continue to offer, their back and sides yard for catered parties and events for which they may also provide catering services.

30. Specifically, Defendants held events on Saturday, October 24, 2020 and on or about November 28-29, 2020.

31. These events are crowded, hosting more than 50 guests. These events are loud, noisy and run well into the early hours of the following morning.

32. These events have been held in violation of State and local safety rules, order and regulation. Guests were observed violating social distance directives and interacting without masks.

33. Renting their backyard, hosting catered events and providing catering to the general public is carrying on a commercial enterprise in a residential zone, and as such, creates excessive noise, congestion, street traffic, parking issues and generates an enormous amount of garbage and waste.

34. As the Defendants do not have sufficient facilities to properly handle, contain or store such waste/garbage, much of this trash is left uncovered, open, exposed and may draw insects and vermin to the neighbor. As shorefront properties are unusually susceptible to vermin, this is of a particular concern.

35. Upon information and belief, carrying on a commercial enterprise in a residential zone is a violation of local and county zoning codes and as previously noted currently a violation of executive orders/health and safety directives.

36. Holding events on such a scale and in such a reckless manner creates a danger to general public.

37. Defendants actions create excessive noise, vibration, congestion, generate waste, garbage and increases the chance of infestation of insects and vermin which decreases and diminished the value and worth of Plaintiffs' home.

d. Defendants permit trash and debris all about their property.

38. Defendants have accumulated and maintain substantial litter, uncovered trash and debris on their property.

39. In addition to being an eyesore, this trash may attract and harbor insects and vermin. As previously noted, this property is on the waterfront and as such is particularly susceptible to vermin infestation.

40. The conditions on the Defendants property is an eyesore and is ripe for insect/vermin infestation which would spread to surrounding properties including that of the Plaintiffs.

41. Defendants actions have created an eyesore and conditions which are ripe for insect/vermin infestation all of which decreases and diminished the value and worth of Plaintiffs' home.

e. Plaintiff's requests Defendants to stop their activities.

42. Plaintiff Thomas E. DeSousa approach Defendant Calvagno and requested that he stop idling/revving/racing his car and driving recklessly; he registered complaints concerning the catering activities, as well as boat slip rental. Defendant Calvagno refused to entertain any possibility of abating any such activities.

43. In fact, the Defendant then went on to exacerbate an already bad situation by idling and revving the car longer, seemingly going out of his way to make his presence known to annoy and harass the Plaintiffs more.

FIRST CAUSE OF ACTION

Private Nuisance

44. Plaintiffs repeat and reallege the allegations contained above in paragraphs "1" - "43" above as each were set forth here at length herein.

45. Defendants' actions above interfere with the Plaintiffs; use and enjoyments of property that they own.

46. Such interference is a result of the Defendants' actions as noted above, such actions are causing/creating excessive noise, vibrations, congestion, traffic, waste, insects and vermin.

47. Defendants' actions in creating such interference are intentional, negligent and/or reckless.

48. Defendants knew, or should have known that their actions are offensive, illegal and likely to cause harm and/or injury to others.

49. Defendants' actions are unreasonable in their nature as they violate State and Local rules, laws and regulations.

50. Defendants actions constitute a private nuisance.

51. Defendants have had actual notice of the nuisance and have had the opportunity to abate the nuisance but have failed to do so.

52. Defendants' conduct constitutes a private nuisance and has proximately caused, and will continue to cause, damages to Plaintiffs. Plaintiffs are entitled to injunctive relief requiring, *inter alia*, Defendants to abate the nuisance. Plaintiffs are also entitled to compensatory damages for the direct financial harm, in an amount to be determined at trial.

SECOND CAUSE OF ACTION**Public Nuisance**

53. Plaintiffs repeat and reallege the allegations contained above in Paragraphs “1” – “52” as if set forth at length herein.

54. Defendants’ actions and conduct are causing/creating excessive noise, vibrations, congestion, traffic, waste, insects and vermin and impact Plaintiffs’ residence, other residences, and public spaces.

55. The Defendants’ actions are causing/creating excessive noise, vibrations, congestion, traffic, waste, insects and vermin that offend, interfere with, and cause damage to the public in their exercise of rights common to all, such as traveling through the area, using public streets and sidewalks and areas such as residing in their dwellings, attending neighborhood schools etc.

56. These impacts injure and endanger the property, health, safety, and comfort of a considerable number of persons.

57. Plaintiffs have experienced special harm from Defendants’ conduct or omissions that are different in kind from those experienced by the public at large.

58. Defendants’ actions constitute a public nuisance.

59. Defendants have actual notice of the public nuisance and have had a reasonable opportunity to abate the nuisance. Defendants’ conduct constitutes a public nuisance that has proximately caused, and will continue to cause, damages to Plaintiffs.

60. Plaintiffs are entitled to injunctive relief requiring, *inter alia*, Defendants to abate the nuisance. Plaintiffs are also entitled to compensatory damages for the direct financial harm, in an amount to be determined at trial.

THIRD CAUSE OF ACTION

Nuisance Per Se

61. Plaintiffs repeat and reallege the allegations contained above in paragraphs “1”- “60” above as each were set forth here at length herein.

62. The Defendants’ actions are in violation of state and local laws, regulations.

63. Such illegality makes the nuisance a nuisance *per se*.

64. Defendants’ conduct constitutes nuisance *per se* and has proximately caused, and will continue to cause, damage to Plaintiffs.

65. Plaintiffs are entitled to injunctive relief requiring, *inter alia*, Defendants to abate the nuisance. Plaintiffs are also entitled to compensatory damages for the direct financial harm, in an amount to be determined at trial.

FOURTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

66. Plaintiffs repeat and reallege the allegations contained above in paragraphs “1”- “65” above as each were set forth here at length herein.

67. Defendants’ actions and conduct are causing/creating excessive noise, vibrations, congestion, traffic, waste, insects and vermin and impact Plaintiffs’ residences inside and out, interfere with the Plaintiffs’ sleep and comfort.

68. Defendant's conduct and actions are extreme and outrageous considering the level of the excessive noise, vibration, the time of day and the character of the neighborhood.

69. Defendants' were made aware of their actions their actions were having a significant negative impact upon the home, health and well-being of the Plaintiffs' and rather than abate their actions, they have increased them and have done so with the intent of causing severe emotional distress to the Plaintiffs.

70. The Defendants' conduct and actions have had the intended impact upon the Plaintiffs and have caused them to suffer severe emotional distress.

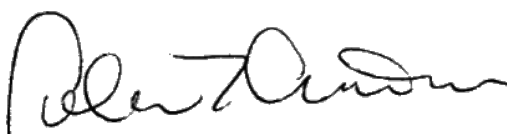
71. Plaintiffs are entitled to injunctive relief requiring, *inter alia*, Defendants to abate the nuisance. Plaintiffs are also entitled to compensatory damages for the direct financial harm, in an amount to be determined at trial.

WHEREFORE, Plaintiffs request that this Court award the following relief:

- i. A declaratory judgment that Defendants' actions stated herein have constituted and continue to constitute a private nuisance;
- ii. A declaratory judgment that Defendants' actions stated herein have constituted and continue to constitute a public nuisance;
- iii. A declaratory judgment that Defendants' actions stated herein have constituted and continue to constitute nuisance *per se*;
- iv. An injunction ordering to abate the nuisance caused by Defendants' actions stated herein;

- v. An injunction prohibiting Defendants from leasing or operating a public marina and/or a catering facility and/or storing garbage and debris at the 320 Grand Central Avenue, Amityville, New York,
- vi. An award of money damages; and
- vii. Any and all other relief that the Court deems just and proper.

Dated: January 8, 2021
Commack, New York



John N. Cuomo
Attorney for Plaintiffs
11 Fern Drive
Commack, NY 11725
631-403-0515

VERIFICATION

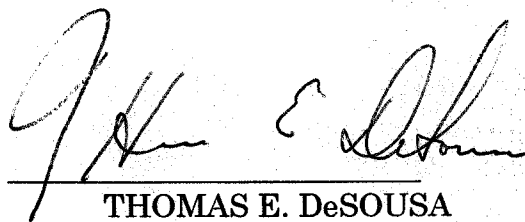
STATE OF NEW YORK)

ss.:

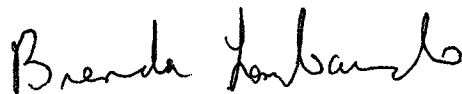
COUNTY OF SUFFOLK)

THOMAS E. DeSOUSA, being duly sworn, deposes and says that deponent is one of the PLAINTIFFS in the within action; that deponent has read the VERIFIED COMPLAINT and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

BRENDA LOMBARDO
Notary Public, State of New York
No. 0711027003
Qualified in Suffolk County
Commission Expires March 28, 2022


THOMAS E. DeSOUSA

Sworn to before me this
8th day of January, 2021



- Notary Public -

VERIFICATION

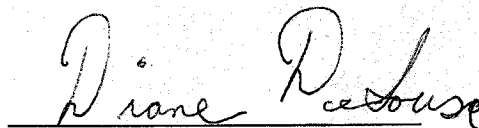
STATE OF NEW YORK)

ss.:

COUNTY OF SUFFOLK)

DIANE C. DeSOUSA, being duly sworn, deposes and says that deponent is one of the PLAINTIFFS in the within action; that deponent has read the VERIFIED COMPLAINT and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

BRENDA LONCARDO
Notary Public, State of New York
No. 015723113
Qualified in Suffolk County
Commission Expires March 28, 2022


DIANE C. DeSOUSA

Sworn to before me this
8th day of January, 2021



- Notary Public -

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SUMMONS AND VERIFIED COMPLAINT

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